



CHAPTER xiii

An Act to transfer the undertaking of the Wallasey Embankment Commissioners to the mayor, aldermen and burgesses of the borough of Wallasey; and for other purposes. [24th May, 1962.]

WHEREAS—

(1) The borough of Wallasey (in this Act called “ the borough ”) is a county borough under the government of the mayor, aldermen and burgesses of the borough (in this Act called “ the Corporation ”):

(2) By the Wallasey Embankment Act, 1829, commissioners were constituted for the purposes in that Act mentioned, including the making of an embankment (known as “ the Wallasey Embankment ”) on the north-west side of the Leasowes in the townships of Wallasey and Great Meols in the county of Chester for the purpose of preventing the further encroachment of the sea and the injury to arise therefrom to the contiguous lowlands defined in that Act (being lands lying under the level of high-water mark of a tide twenty-five feet above the sill of the old dock gates at Liverpool) and to the port of Liverpool (by the possible diversion of tidal waters from one of the then existing channels of navigation in the said port and the consequent accumulation of silt and formation of sand banks), and the said commissioners were authorised to assess and rate the proprietors of the said lowlands for the purpose of enabling the commissioners to defray one-half of the expenses incidental to and attending the execution of the powers and authorities vested in them by the said Act, the other half of such expenses being required by that Act to be paid and discharged by the mayor, bailiffs and burgesses of the town of Liverpool (now the lord mayor, aldermen and citizens of the city of Liverpool and hereinafter referred to as “ the Liverpool Corporation ”):

(3) By the Mersey Docks and Harbour Act, 1857 (being an Act for consolidating the docks at Liverpool and Birkenhead into one estate and for vesting the control and management of them in one public trust and for other purposes), the Mersey Docks and Harbour Board (hereinafter referred to as "the dock board") were incorporated for the purposes therein mentioned and by that Act all the obligations and liabilities of the Liverpool Corporation in relation to the Wallasey Embankment were from and after the first day of January eighteen hundred and fifty-eight transferred to the dock board:

(4) By the Wallasey Embankment Act, 1864, the said commissioners were reconstituted and incorporated under the name of "the Wallasey Embankment Commissioners" and all the powers, duties and authorities of the commissioners under the said Act of 1829 and all works, lands and other property and rights, easements and appurtenances belonging to or vested in them were transferred to and vested in the commissioners so incorporated (hereinafter referred to as "the commissioners") and further provision was made for the maintenance and repair of the Wallasey Embankment and for enabling the commissioners to carry into effect the purposes of the said Act of 1829 and the said Act of 1864:

(5) By the Wallasey Embankment Act, 1894, as amended by the Hoylake and West Kirby Improvement Act, 1900, the commissioners were empowered to make and maintain extensions of the Wallasey Embankment at both ends thereof and the constitution of the commissioners was altered and provision was made for extending the area of assessment as defined in the said Act of 1829 and the said Act of 1864 and for limiting and defining the liability of the dock board and their Birkenhead dock estate (as defined in the said Act of 1894) to contribute towards the cost of extending the Wallasey Embankment and maintaining the same as so extended and to the other expenses of the commissioners:

(6) By the Wallasey Embankment Act, 1923, the borrowing powers of the commissioners were further enlarged and further provisions were enacted as to the finances of the commissioners and the conduct of their affairs:

(7) By the Wallasey Corporation Act, 1945, the Corporation were authorised, by agreement with the commissioners and with the consent of the dock board, to acquire the undertaking of the commissioners in accordance with the provisions of Part III (Wallasey Embankment) of that Act:

(8) Agreement has been reached between the Corporation and the commissioners and the dock board for the transfer of the undertaking of the commissioners to the Corporation on the basis that the persons (other than the dock board) liable

under the Wallasey Embankment Acts, 1829 to 1923 (hereinafter referred to as "the Embankment Acts"), for the payment of any embankment rate shall pay to the Corporation a sum of money equivalent to ninety per centum of the rateable value of their respective rateable hereditaments and that the dock board shall pay to the Corporation the sum of fifty thousand pounds and that all further liability for the payment of any embankment rate and for any payments by the dock board under the Embankment Acts shall be extinguished and on the basis of the other provisions in that behalf contained in this Act:

(9) It is expedient to provide for the transfer of the undertaking of the commissioners to the Corporation as in this Act provided and to enact the other provisions contained in this Act with regard thereto:

(10) It is expedient that the other provisions contained in this Act be enacted:

(11) The purposes of this Act cannot be effected without the authority of Parliament:

(12) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act, 1933, have been observed:

May it therefore please your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows, that is to say:—

1. This Act may be cited as the Wallasey Corporation Act, Short title. 1962.

2.—(1) In this Act the several words and expressions (other Interpretation. than the word "owner" and the word "enactment") to which meanings are assigned by section 343 of the Public Health Act, 1936, have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires—

"the Act of 1945" means the Wallasey Corporation Act, 1945;

"the borough" means the county borough of Wallasey;

"clear annual value" means in relation to any rateable hereditament the clear annual value thereof to let as appearing in the valuation made pursuant to section 28 (Commissioners to prepare Survey and Valuation of Lands within the Limits) of the Wallasey Embankment

- Act, 1864, and section 26 (Commissioners to prepare survey and valuation of lands within the limits) of the Wallasey Embankment Act, 1894, and sealed by the commissioners on the twenty-second day of December, nineteen hundred and fifty-nine, as revised and corrected by any supplemental valuations made under section 9 (Power to make supplemental survey and valuation and correct manifest errors) of the Wallasey Embankment Act, 1923, and section 5 (Supplemental valuation) of this Act;
- “the commissioners” means the Wallasey Embankment Commissioners;
- “the Corporation” means the mayor, aldermen and burgesses of the borough;
- “the date of transfer” means the first day of July, nineteen hundred and sixty-two;
- “the dock board” means the Mersey Docks and Harbour Board;
- “the Embankment Acts” means the Wallasey Embankment Acts, 1829 to 1923;
- “embankment rate” means the rate which the commissioners are by the Embankment Acts authorised to levy;
- “enactment” means any Act whether public general or local or any order made thereunder or any provision in any Act or in any such order;
- “the general rate fund” means the general rate fund of the borough;
- “owner” means the person for the time being receiving the rack rent of the lands or premises in connection with which the word is used whether on his own account or as agent or trustee for any other person or who would so receive the same if such lands or premises were let at a rack rent and includes all persons interested in lands within the area of assessment as defined in section 9 (Power to make supplemental survey and valuation and correct manifest errors) of the Wallasey Embankment Act, 1923 (not being unenclosed common lands), who if the lands were let to a tenant would be entitled to demand and receive the rent from such tenant and whether such persons are so interested in the lands in their own right or in right of their wives or as trustees, committees, mortgagees or guardians of persons so interested;

“rateable hereditament” has the meaning assigned to it by section 9 (Power to make supplemental survey and valuation and correct manifest errors) of the Wallasey Embankment Act, 1923;

“rateable value” means in relation to any rateable hereditament the appropriate proportion of the clear annual value thereof prescribed by section 29 (Commissioners to assess Owners and Mersey Board for Payment of Debts, &c.) of the Wallasey Embankment Act, 1864, or section 27 (How assessment to be made) of the Wallasey Embankment Act, 1894;

“the undertaking of the commissioners” means the undertaking authorised by the Embankment Acts including—

(a) the Wallasey Embankment and all embankments, forelands, fences, drains, sluices, works, lands, buildings and hereditaments, machinery, plant, tools, apparatus, vehicles, stores, furniture, chattels and effects belonging to or vested in the commissioners immediately before the date of transfer;

(b) all bank balances and cash and other balances in the hands of the commissioners or in the hands of their bankers, agents or servants on their behalf immediately before the date of transfer and investments and securities for moneys forming part of any fund established by the commissioners;

(c) all rates, rents, book debts and other sums of money which immediately before the date of transfer are due or payable to or are accruing due or payable to the commissioners;

(d) all estates, rights, powers, easements, interests and privileges vested in, or had, or enjoyed, by the commissioners immediately before the date of transfer;

(e) all contracts between the commissioners and others and in force immediately before the date of transfer and the benefits of such contracts subject to any liabilities thereunder;

(f) all registers, books, accounts, maps, plans, specifications, engineering reports and other documents belonging to the commissioners;

(g) all other the real and personal property forming part of the undertaking of the commissioners immediately before the date of transfer;

“the Wallasey Embankment” means the whole embankment constructed under the powers of the Embankment Acts.

(3) Except where the context otherwise requires any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment including this Act.

Transfer of
undertaking of
commis-
sioners.

3. On the date of transfer the undertaking of the commissioners shall by virtue of this Act and without any deed of conveyance or other assurance become and be vested in the Corporation subject to all debts, liabilities and obligations of the commissioners which shall be subsisting immediately before the date of transfer and the commissioners shall by virtue of this Act become and be dissolved.

Management
of undertaking
of commis-
sioners up to
date of
transfer.

4. Until the date of transfer the undertaking of the commissioners shall be managed and carried on in the ordinary course of business and the commissioners shall not without the consent of the Corporation enter into any contract or incur any liability other than in the ordinary course of carrying on their undertaking or incur any unreasonable or exceptional expenditure.

Supplemental
valuation.

5.—(1) The commissioners shall cause to be made as at the thirtieth day of June, nineteen hundred and sixty-two such a supplemental valuation as they are authorised to direct to be made by subsection (2) of section 9 (Power to make supplemental survey and valuation and correct manifest errors) of the Wallasey Embankment Act, 1923, and the provisions of subsection (3) of that section shall apply to the valuation so made.

(2) Sections 30 to 35 inclusive of the Wallasey Embankment Act, 1864, shall apply to any valuation made under this section as if for references therein to an assessment there were substituted references to such a valuation.

(3) A supplemental valuation under this section shall come into force as soon as it has been made and settled under this section.

(4) Subsection (6) of section 9 of the Wallasey Embankment Act, 1923, shall apply to a supplemental valuation made under this section as if for references therein to a survey, valuation and assessment there were substituted references to such a valuation.

(5) On and after the date of transfer the provisions of the Wallasey Embankment Act, 1864, and the Wallasey Embankment Act, 1923, as applied by this section shall have effect as if for references to the commissioners there were substituted references to the Corporation or the council of the borough (as the case may require) and for references to the clerk to the commissioners there were substituted references to the town clerk of the borough.

6.—(1) Subject to the provisions of section 12 (Savings) of this Act, on the date of transfer all liability on the part of any person (including the dock board) for the payment of any embankment rate or other sum of money under the Embankment Acts shall cease and determine and the following provisions of this section shall have effect. Payments to
be made to
Corporation.

(2) There shall be paid to the Corporation in respect of each rateable hereditament (other than a rateable hereditament of which the dock board was the owner immediately before the date of transfer) a sum of money equivalent to ninety per centum of the rateable value of that hereditament.

(3) As soon as may be after the date of transfer the Corporation shall serve upon each person who immediately before the date of transfer was the owner of a rateable hereditament a notice stating the sum which is due in respect thereof and requiring payment of that sum within one month from the date of the service of the notice:

Provided that the Corporation shall not serve a notice with respect to any rateable hereditament which has been valued under the last foregoing section before the final settlement of that valuation.

(4) After the expiration of three months from the date of the service of a notice under subsection (3) of this section in respect of a rateable hereditament the sum ascertained in accordance with subsection (2) of this section in respect of that rateable hereditament together with interest from the expiration of one month from the date of the service of that notice until payment may be recovered by the Corporation from the person who was the owner of the rateable hereditament immediately before the date of transfer or, if he has ceased to be the owner of the rateable hereditament before the date when a notice under subsection (3) is served, either from him or from the person who is the owner thereof at the date when the notice is served:

Provided that any person liable under the foregoing provisions of this section for the payment of a sum exceeding five pounds may elect to pay the sum by not more than five annual instalments of capital together with interest from the expiration of one month from the date of the service of the notice under subsection (3) of this section with respect to the payment. The Corporation and a person who so elects to pay by instalments shall enter into an agreement in the form set out in the First Schedule to this Act or a form to the like effect.

(5) (a) If any sum payable under the foregoing provisions of this section remains unpaid at the expiration of six months from the date of the service of a notice under subsection (3) of this section the sum payable and interest accrued thereon shall until recovered be a charge on the rateable hereditament to which the sum relates and on all estates and interests therein.

(b) The Corporation shall, for the purpose of enforcing a charge under this subsection, have all the same powers and remedies under the Law of Property Act, 1925, and otherwise as if they were mortgagees by deed having powers of sale and lease, of accepting surrenders of leases and of appointing a receiver.

(6) The rate of any interest payable under this section shall be one-quarter of one per centum above the rate fixed by the Treasury under section 1 of the Public Works Loans Act, 1897, which at the date of transfer is applicable to a loan to a local authority for a period not exceeding five years.

(7) Within two months after the date of transfer the dock board shall pay to the Corporation the sum of fifty thousand pounds, which sum may be paid either—

- (i) out of any moneys for the time being in the hands of the dock board on revenue account; or
- (ii) out of any moneys which the dock board are by any enactment authorised to borrow and which are not by such enactment made applicable to any special purposes or if so made applicable are not required for those purposes.

Power to
borrow.

7.—(1) The Corporation may borrow—

- (a) such sums as may be necessary for any of the purposes of this Act;
- (b) without the consent of any sanctioning authority, such sums as may be necessary for the payment of the costs, charges and expenses of this Act;

and, subject to the provisions of this section, Part IX of the Local Government Act, 1933, shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The Corporation shall repay sums borrowed under paragraph (b) of the foregoing subsection within five years from the date of borrowing.

(3) It shall not be lawful to exercise the powers of borrowing conferred by paragraph (a) of subsection (1) of this section except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act, 1946.

Embankment
reserve fund.

8.—(1) The Corporation may establish a fund to be called “the embankment reserve fund” to which they may apply—

- (a) any sums of money transferred to the Corporation by section 3 (Transfer of undertaking of commissioners) of this Act;

shall have effect as if the Corporation were therein referred to instead of the commissioners;

(b) the following sections of the Act of 1945, namely:—

Section 10 (Officers and servants of commissioners);

Section 15 (For protection of Hoylake Urban District Council);

shall have effect as if the undertaking of the commissioners vested in the Corporation by this Act had on the date of transfer become vested in the Corporation in pursuance of the provisions of Part III (Wallasey Embankment) of the Act of 1945 and as if for references therein to the date of transfer as defined in that Act there were substituted references to the date of transfer as defined in this Act.

(2) Except so far as they are required for the purpose of section 6 (Payments to be made to Corporation) or paragraph (2) of section 12 (Savings) of this Act, the provisions of the Embankment Acts set out in Part II of the Second Schedule to this Act shall be repealed on the date of transfer.

(3) Subject to the provisions of section 5 (Supplemental valuation) of this Act and to the foregoing provisions of this section the following enactments shall be repealed on the date of transfer:—

(a) the unrepealed provisions of the Embankment Acts;

(b) the provisions of the Act of 1945 mentioned in the Third Schedule to this Act;

(c) section 55 (Amendment of Wallasey Embankment Acts) of the Mersey Docks and Harbour Board Act, 1945, and section 31 (Amendment of Wallasey Embankment Acts) of the Mersey Docks and Harbour Board Act, 1950.

Application
of powers in
relation to
public walks,
parks, etc.

10. The Wallasey Embankment and any other lands acquired by the Corporation as part of the undertaking of the commissioners shall be deemed to be a public walk within a pleasure ground and accordingly the Corporation may exercise in regard thereto all or any of the rights and powers of a local authority under or in pursuance of the Public Health Acts in relation to public walks, parks and pleasure grounds:

Provided that the powers conferred upon the Corporation by this section shall not be exercised within the urban district of Hoylake except with the consent in writing of the Hoylake Urban District Council.

Application
of protective
sections.

11. The provisions of any protective section for the benefit of the commissioners contained in any enactment by whomsoever obtained shall enure on and after the date of transfer to the benefit

- (b) the payments made to the Corporation under section 6 (Payments to be made to Corporation) of this Act;
- (c) any moneys recovered by the Corporation by virtue of section 12 (Savings) of this Act;
- (d) any other receipts in connection with the Wallasey Embankment;
- (e) from the general rate fund any sum not exceeding in any period of twelve months ending on the thirty-first day of March the equivalent of a rate of twopence in the pound as ascertained or estimated for the purpose of section 9 of the Rating and Valuation Act, 1925;

and the maximum amount standing to the credit of such fund shall from time to time be determined by the Corporation.

(2) (a) Pending the application of the moneys in the embankment reserve fund to any of the purposes authorised by subsection (3) of this section, such moneys shall (unless applied in any other manner authorised by any enactment) be invested in any securities in which trustees are for the time being authorised to invest trust moneys.

(b) Any income arising from the investment of the moneys in the embankment reserve fund in the manner provided by the foregoing paragraph, and any income arising from the application of the fund to the purposes authorised, shall be carried to the general rate fund and an amount equivalent to such income shall be credited to the embankment reserve fund.

(3) The embankment reserve fund shall be applicable to—

- (a) the maintenance, renewal, reconstruction and management of the Wallasey Embankment; and
- (b) any payment to be made by the Corporation under or in pursuance of this Act or any enactment incorporated therewith or applied thereby;

and so that if at any time the fund be reduced it may thereafter be again restored to the maximum sum determined by the Corporation and so from time to time as often as such reduction happens, but nothing in this section shall prejudice or affect the right of the Corporation to apply any moneys forming part of the general rate fund for any of the purposes mentioned in this subsection or to levy a rate for any of those purposes.

(4) Resort may be had to the embankment reserve fund under the foregoing provisions of this section although such fund may not at the time have reached, or may have been reduced below, the maximum sum determined by the Corporation.

9.—(1) On and after the date of transfer—

- (a) the sections of the Embankment Acts which are mentioned in Part I and Part II of the Second Schedule to this Act

Application
and repeal of
enactments.

of the Corporation and shall be construed as if a reference to the Corporation were substituted therein for any reference to the commissioners:

Provided that section 6 (For protection of Wallasey Embankment Commissioners) of the Hoylake and West Kirby Improvement Act, 1900, shall have effect as if in paragraph (4) of the provisions, stipulations and conditions the words "to the satisfaction of the engineer of the commissioners" were omitted.

12. Notwithstanding the provisions of section 9 (Application Savings. and repeal of enactments) of this Act and notwithstanding the transfer to the Corporation of the undertaking of the commissioners the following provisions shall have effect, that is to say:—

- (1) If on the date of transfer any action, arbitration or proceeding or any cause of action, arbitration or proceeding is pending or existing against or in favour of the commissioners, the same shall not abate or be discontinued or in any wise prejudicially affected by reason of such transfer, but the same may be continued, prosecuted and enforced by, against or in favour of the Corporation as and when it might have been continued, prosecuted and enforced by, against or in favour of the commissioners if this Act had not been passed:
- (2) All sums of money, rates and assessments in connection with the undertaking of the commissioners which have been lawfully made, charged or imposed, and which immediately before the date of transfer are due to the commissioners, shall continue to be due and payable and may be levied, collected, recovered or enforced by the Corporation as and when the same might have been payable to and levied, collected, recovered or enforced by the commissioners if this Act had not been passed and any embankment rates which the Corporation are authorised under this paragraph to recover may be recovered by the Corporation:
- (3) All agreements, conveyances, contracts, deeds and other instruments entered into or made with or by the commissioners and in force on the date of transfer shall be as binding and of as full force and effect in every respect against or in favour of the Corporation and may be enforced as fully and effectually, as if, instead of the commissioners, the Corporation had been a party thereto:
- (4) All books and documents which, if the transfer had not been made, would have been evidence in respect of any matter for or against the commissioners, shall be admitted in evidence in respect of the same or the like matter for or against the Corporation.

Application
of general
provisions of
Public Health
Act, 1936.

13. The sections of the Public Health Act, 1936, mentioned in the Fourth Schedule to this Act shall have effect as if references therein to that Act included references to this Act:

Provided that any sum exceeding fifty pounds shall not be recovered summarily as a civil debt under the powers of section 293 of the Public Health Act, 1936, as applied by this section.

Extension of
section 303 of
Public Health
Act, 1875.

14. Section 303 of the Public Health Act, 1875, shall have effect as if this Act related to the same subject-matters as the Public Health Act, 1875.

Protection of
members and
officers of
Corporation
from personal
liability.

15. Section 265 of the Public Health Act, 1875, shall apply to the Corporation as if any reference in that section to the said Act of 1875 included a reference to this Act and as if any reference in that section to a member of a local authority included a reference to a member of a committee of a local authority.

Works below
high-water
level.

16. Nothing in this Act shall authorise the construction of any works (other than works of maintenance or repair) on over or under tidal lands below the level of mean high-water springs except in accordance with such plans and sections and subject to such conditions and restrictions as previous to the works being commenced have been approved by the Minister of Transport in writing which approval may be signified under the hand of the acting conservator of the river Mersey.

Costs of Act.

17. All the costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act shall be paid by the Corporation.

SCHEDULES

FIRST SCHEDULE

Section 6.

FORM OF AGREEMENT FOR PAYMENT BY INSTALMENTS

AN AGREEMENT made the day of
Nineteen hundred and between THE MAYOR ALDERMEN
AND BURGESSES OF THE BOROUGH OF WALLASEY (in this agreement called
“ the Corporation ”) and
of
(in this agreement called “ the owner ”)

Whereas—

(1) In pursuance of subsection (2) of section 6 (Payments to be made to Corporation) of the Wallasey Corporation Act 1962 the owner is liable to pay to the Corporation the sum of

(2) In pursuance of subsection (3) of the said section 6 the Corporation served a notice on the owner on the _____ day of _____ Nineteen hundred and _____

(3) The owner has elected to pay the said sum by instalments:

Now this agreement witnesseth as follows:—

The owner shall pay to the Corporation the sum of _____
and interest thereon at the rate of _____
per centum per annum from the _____
day of _____ Nineteen hundred and _____
(being one month from the date of _____
the service of the notice under subsection (3) of the said section 6)
by _____ equal yearly instalments of _____ each
on the _____ day of _____ in each year the first
instalment to be paid on the _____ day of _____
Nineteen hundred and _____ but if the owner shall make
default in payment of any such instalment of principal and interest
or any part thereof for thirty days after the same shall have become due
the whole of the unpaid instalments shall become immediately due and
payable.

In Witness whereof etc.

SECOND SCHEDULE

Section 9 (1).

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Section XVIII Embankment to be made.

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- Section 3 Interpretation.

Section 9 (1)
and (2).

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- Section 8 Partial application of certain enactments with amendments.

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Table of Statutes referred to in this Act

Short title	Session and chapter
Wallasey Embankment Act, 1829	10 Geo. 4 c. xvi.
Mersey Docks and Harbour Act, 1857	21 & 22 Vict. c. xcii.
Wallasey Embankment Act, 1864	27 & 28 Vict. c. clx.
Public Health Act, 1875	38 & 39 Vict. c. 55.
Wallasey Embankment Act, 1894	57 & 58 Vict. c. ci.
Public Works Loans Act, 1897	60 & 61 Vict. c. 51.
Hoylake and West Kirby Improvement Act, 1900	63 & 64 Vict. c. lxxix.
Wallasey Embankment Act, 1923	13 Geo. 5 c. iii.
Law of Property Act, 1925	15 & 16 Geo. 5 c. 20.
Rating and Valuation Act, 1925	15 & 16 Geo. 5 c. 90.
Local Government Act, 1933	23 & 24 Geo. 5 c. 51.
Public Health Act, 1936	26 Geo. 5 & 1 Edw. 8 c. 51.
Mersey Docks and Harbour Board Act, 1945 ..	8 & 9 Geo. 6 c. vii.
Wallasey Corporation Act, 1945	9 & 10 Geo. 6 c. xiii.
Borrowing (Control and Guarantees) Act, 1946	9 & 10 Geo. 6 c. 58.
Mersey Docks and Harbour Board Act, 1950 ..	14 Geo. 6 c. xxi.

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Part I—Provisions of the Embankment Acts applied to the Corporation.

Part II—Provisions of the Embankment Acts repealed on the date of transfer except so far as they are required for the purpose of section 6 (Payments to be made to Corporation) and paragraph (2) of section 12 (Savings) of this Act.

Third Schedule—Provisions of the Act of 1945 repealed on the date of transfer.

Fourth Schedule—Sections of Public Health Act, 1936, applied.